

§ 345.1. Orders. 1. If the allegations of a petition or specific counts of a petition concerning the commission of a crime or crimes are established, the court shall enter an appropriate order and schedule a dispositional hearing pursuant to section 350.1. The order shall specify the count or counts of the petition upon which such order is based and the section or sections of the penal law or other law under which the act or acts so stated would constitute a crime if committed by an adult. If the respondent or respondents are found to have committed a designated felony act, the order shall so state.

2. If the allegations of a petition or specific counts of a petition under this article are not established, the court shall enter an order dismissing the petition or specific counts therein.

3. Where an order of fact-finding that includes solely a violation as defined in subdivision three of section 10.00 of the penal law committed by a juvenile sixteen years of age or, commencing on October first, two thousand nineteen, seventeen years of age, has been entered pursuant to subdivision one of this section, there shall be a rebuttable presumption that the court shall refer the case to the probation service for adjustment services in accordance with section 320.6 of this article, dismiss the case pursuant to subdivision two of section 352.1 of this article or adjourn the case in contemplation of dismissal pursuant to section 315.3 of this article.